

abode. This notice must be served on the solicitors of all the other parties entitled to examine witnesses, and in case any such party has no solicitor, upon such party, at least fourteen clear days before the day therein named for proceeding to examine witnesses.

LIII.
Interrogatories
abolished.

No written interrogatories for the examination of either witnesses or parties, either before or after decree, shall henceforward be filed, except by direction of the Court; such examinations shall be *viva voce*, and may be conducted either by the parties, their solicitors or counsel.

LIV.
Witnesses in
County of York
must be exam-
ined before
the Court.

Witnesses (whether parties to the record or not), residing within the County of York, shall be examined before the Court, as the Court shall appoint; and witnesses (whether parties to the record or not) residing in any other county than the County of York, may be examined before the Court by consent of parties, or at the instance of any party willing to pay the extra expense, if any, thereby incurred. In other cases witnesses (whether parties to the record or not) shall be examined at the county town of the county in which such witnesses reside. Provided that nothing herein contained shall be construed to prevent an examination of witnesses from being had at any place that may be fixed by consent of parties.

Other witnesses
may be so ex-
amined.

LV.
Examination
before examiners
in the
country.

The examination of witnesses, (whether parties to the record or not) when not taken before the Court, is to be taken by some one of the examiners, unless otherwise ordered; and, where any of the witnesses reside out of the jurisdiction, it may be taken by commission as heretofore.

These Orders are peculiar to this country, and it is believed that they effect a material improvement in the practice. Having been for so short a time in force, no decisions of importance have taken place under them.

The mode of proceeding is as follows, when the examination is in Toronto:—The subpoena for witnesses having been taken out, an application is made to the Chancellor to name a day for examination. This he does by signing an appointment for a day not less than fourteen days distant, and notice of the names of the intended witnesses is then given to the opposite Solicitor, stating the time when they will be examined. The witnesses should each be served with a copy of the subpoena and a copy of the appointment attached, and paid the same fees as witnesses are al-

lowed in
sworn by
evidence
sion of t
re-exam
the with
passed,
quest th
at the h

A lar
and may

That
practice
of a cau
witness
vocè at

For
Chance
Perkins

Anot
under th
similar
Commo

Any
the oth
orders
adduce
adverse
within
the par
require
admissi
of proo
consent
applica
of prod
shall b
Court,
may b
Court
shall b
Court